

or by conditional limitation, or otherwise, or to be defeated by an executory limitation, gift, or disposition over, or is subject to a trust for accumulation of income for payment of debts or other purpose.

(7). A tenant in tail after possibility of issue extinct.

(8). A tenant by the curtesy.

(9). A person entitled to the income of land under a trust or direction for payment thereof to him during his own or any other life, whether subject to expenses of management or not, or until sale of the land, or until forfeiture of his interest therein on bankruptcy or other event.

Under this section it has been held that, where estates were devised to the use of trustees upon trust to pay the net income to the testator's wife, for the maintenance, education, and benefit of the testator's son until he should attain twenty-one, and without being liable to account to the trustees or to the son for the same, and upon the son's attaining twenty-one, then upon trust for him absolutely, but if he should die under twenty-one without leaving issue, then upon other trusts, the infant son had the powers of a tenant for life, as being tenant in fee simple, with an executory limitation over in the event of his death under twenty-one without issue (*a*). So where, subject to a term for raising certain sums, freehold estates were devised to the use of trustees during the life of A., with remainders over, and the trustees were to enter into possession, and during the life of A. manage the property and pay all expenses and outgoings, and keep down the interest on charges, and pay an annuity, and then pay the ultimate residue of the rents and profits to A., and the income was insufficient after payment of the outgoings and interest to pay the annuity, it was held that A. came within sub-sect. (1), clause (9), of sect. 58, and had the powers of a tenant for life (*b*). So where estates were limited to trustees for a term of 1300 years, and subject thereto to A. for life, with remainders over in strict settlement, and the trusts of the term were to raise portions, to pay annuities, including an annuity to A., and to apply the

(*a*) *Re Morgan*, 24 Ch. D. 114.

(*b*) *Re Jones*, 24 Ch. D. 583; 26 Ch. D. 736.